

56	Jacobson vs. LaVine & Associates Inc. 22-01269276	Motion for Summary Judgment and/or Adjudication The Motion for Summary Judgment brought by Defendant Best Best & Krieger, LLP (“BBK”) is GRANTED. Defendant’s unopposed Requests for Judicial Notice (ROA Nos. 749 and 753) are GRANTED, pursuant to Evidence Code section 452, subdivision (d), with the limitation that the Court notices only the existence of the documents and the fact of their filing. (<i>Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort</i> (2001) 91 Cal.App.4th 875, 882.) Plaintiffs’ Evidentiary Objections Nos. 1 through 3 (ROA No. 807), directed toward the Declaration of Bruce G. Holden are OVERRULED. Plaintiffs’ Evidentiary Objection No. 4 (ROA No. 807) is SUSTAINED, as the identified statement is conclusory. (See <i>Colby v. Schwartz</i> (1978) 78 Cal.App.3d 885, 889; See also <i>Fuller v. Goodyear Tire & Rubber Co.</i> (1970) 7 Cal.App.3d 690, 693.) Defendant’s Evidentiary Objections directed towards the Declaration of Lawrence Jacobson, Nos. 1 through 8, are OVERRULED. (ROA No. 826.) Defendant’s Evidentiary Objections directed towards the Declaration of Darlene Boliver, Nos. 1, 2, and 4 through 14 are OVERRULED. (ROA No. 826.) Objection No. 3 to the Declaration of Darlene Boliver is SUSTAINED, as the identified statement lacks foundation, lacks personal knowledge and is speculative. Defendant’s Evidentiary Objections directed towards the Declaration of Leslie Smith, Nos. 1 through 11, are SUSTAINED. (ROA No. 826.) Objection No. 1 is sustained as the attached trial testimony is hearsay and Plaintiffs have not established application of a hearsay exception, such as Evidence Code section 1292. Objections Nos. 2, 3, 4, 5, 6, 7, 9 and 10 are sustained, for lack of personal knowledge and foundation. Objection No. 8 is sustained as hearsay. Finally, Objection No. 11 to the Declaration of Leslie Smith is sustained for lack of authentication and foundation. With respect to this objection, the same is directed towards Exhibit D, which purportedly consists of “true and correct copies of various documents LaVine produced in response to the Court Order in the Probate Action....” (¶18 of Smith Declaration [ROA No. 808].) Plaintiffs attempt to authenticate the 537 pages included within Exhibit D, by reference to a stipulation with LaVine, wherein in LaVine agreed that documents Bates labelled JLCPA000001-JLCPA017657 “may be authenticated at trial and in pretrial proceedings without the necessity of further testimony solely for purpose of establishing that the documents are what they purport to be, namely, documents produced from the files and electronic media collected from LaVine & Associates in 2020 and copied during the July 2020 production process.” (¶14 of Smith Declaration and Exhibit C thereto, at ¶5 and ¶7 [ROA No. 808].) The Stipulation was not executed under penalty of perjury and makes no attempt to individually authenticate documents. (¶14 of Smith Declaration and Exhibit C thereto [ROA No. 808].) Indeed, the stipulation indicates it was not an admission as to “[t]he truth of any statement contained within any document” or “[t]he authorship of any particular document where authorship is disputed.” (<i>Ibid.</i> at ¶8.) As noted by Defendant, the above fails to authenticate the “hundreds of pages of transaction documents, emails, handwritten notes, and accounting documents” included within the Exhibit. (See Objection No. 11 to Smith Declaration [ROA
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		No. 826.]) Moreover, the stipulation offered is <i>not</i> binding on Defendant BBK: “A Stipulation is an agreement between counsel respecting business before the court [citation], and like any other agreement or contract, it is essential that the parties or their counsel agree to its terms.” (<i>Palmer v. City of Long Beach</i> (1948) 33 Cal.2d 134, 142.) Finally, it is worth noting that, to the extent Plaintiffs offer the documents for the truth of the statements therein, <i>much</i> of the information included within Exhibit D is hearsay. Turning to the merits, as explained by the California Supreme Court in <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, “how the parties moving for, and opposing, summary judgment may each carry their burden of persuasion and/or production depends on which would bear what burden of proof at trial.” (<i>Id.</i> at p. 851.) Where a statute of limitations defense is raised, a moving defendant bears the initial burden to demonstrate the claim is barred. (<i>Aryeh v. Canon Business Solutions, Inc.</i> (2013) 55 Cal.4th 1185, 1197.) Once that burden is met, the burden shifts to plaintiff “to demonstrate his claims survive based on one or more...exception[] to the basic limitations period.” (<i>Ibid.</i>; See also <i>Glue-Fold, Inc. v. Slautterback Corp.</i> (2000) 82 Cal.App.4th 1018, 1030 and <i>Acosta v. Glenfed Development Corp.</i> (2005) 128 Cal.App.4th 1278, 1292-1293.) “That plaintiffs may have anticipated defendants’ reliance on a limitations defense by alleging facts supporting a statutory exception to that defense is not sufficient to justify shifting the burden that otherwise would be imposed on plaintiffs.” (<i>Acosta v. Glenfed Development Corp.</i> (2005) 128 Cal.App.4th 1278, 1293.) “The statute of limitations usually commences when a cause of action ‘accrues,’ and it is generally said that ‘an action accrues on the date of injury.’” (<i>Vaca v. Wachovia Mortgage Corp.</i> (2011) 198 Cal.App.4th 737, 743.) “Alternatively, it is often stated that the statute commences ‘upon the occurrence of the last element essential to the cause of action.’” (<i>Ibid.</i>) The Fourth Amended Complaint alleges conduct spanning between May of 2005 through to September 25, 2014, which depleted the assets of the Trust. (See ¶38-¶59 and ¶113 of 4AC [ROA No. 597].) Per the Complaint, moving Defendant aided and abetted Jeffrey Jacobson, in the above conduct. (See ¶137 of 4AC [ROA No. 597].) The claims against Defendant BBK arise from the conduct of Bruce G. Holden, who is alleged to have been acting in his capacity as a representative of Defendants BBK and GRSM. (¶13, ¶15 and ¶105 of 4AC [ROA No. 597].) These parties are designated the “Holden Defendants.” (<i>Id.</i> at ¶15.) While the Complaint vaguely alleges acts of fraud in 2017 by Defendant Holden (¶168 of 4AC [ROA No. 597]) and vaguely alleges the “Holden Defendants” aided and abetted Jeffrey Jacobson “between in or about September 2005 and August 2021” (¶137 of 4AC [ROA No. 597]), the Complaint does not identify any injuries sustained in connection to the above. Nor have Plaintiffs identified within their opposition, any allegations of an injury past 2014, which would affect accrual.
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		Moreover, regardless, Defendant has established that any conduct attributable to it occurred in 2012 or before. (See SSUF No. 1 [ROA No. 803]; See also ¶3-¶5 of Holden Declaration [Roa No. 758].) In response to the above, Plaintiffs indicate they “do not dispute that Bruce Holden was employed by BBK before joining GRSM in approximately 2012.” (See Responsive Separate Statement, at SSUF No. 1 [ROA No. 803].) While Plaintiffs proceed to “dispute any implication that BBK’s potential liability is limited solely by the date Mr. Holden changed firms” (See ROA No. 803), this attempted dispute is <i>directly</i> contrary to the allegations in the Complaint. Within a section labelled “BB&K,” the Complaint alleges that “at various times when defendant Holden made the representations and/or omissions alleged herein, he was acting within the course and scope of his employment and authority for the defendant BB&K during those years in which he was employed with BBK.” (¶105 of 4AC [ROA No. 597].) Thereafter, the Complaint alleges that “at various other times when defendant Holden made the representations and/or omissions alleged herein, he was acting within the course and scope of his employment and authority for the defendant GRSM during those years in which he was employed with GRSM.” (<i>Id.</i> at ¶106.) “Plaintiffs are informed and believe, and thereon allege, that during all relevant times BB&K acted through its agent Holden in carrying out the acts and/or omissions alleged herein.” (<i>Id.</i> at ¶110.) Finally, the Complaint alleges Defendant BBK “intentionally failed to disclose” information, “[c]ommencing in or about 2005 and continuing until such time as Holden was no longer employed by or acting as an agent for BB&K.” (<i>Id.</i> at ¶113.) “[T]he burden of a defendant moving for summary judgment only requires that he or she negate plaintiff’s theories of liability <i>as alleged in the complaint</i>.” (<i>Hutton v. Fidelity National Title Co.</i> (2013) 213 Cal.App.4th 486, 493.) Additionally, Plaintiffs failed to offer admissible evidence demonstrating any conduct by BBK post-2012. Given Defendant has established that any conduct attributable to it occurred prior to 2012 and given the Complaint alleges conduct spanning between May of 2005 through to September 25, 2014, which depleted the assets of the Trust (¶38-¶59 of 4AC [ROA No. 597]), Defendant has established accrual no later than 2014. As relevant to Plaintiffs’ remaining claims against moving Defendant, the statute of limitations for fraud is generally 3 years. (Code Civ. Proc., § 338, subd. (d).) The statute of limitations for a UCL claim is 4 years. (<i>Ivanoff v. Bank of America, N.A.</i> (2017) 9 Cal.App.5th 719, 732 and Bus. & Prof. Code, § 17208.) As this action was initiated on July 11, 2022, more than 4 years after 2014, Defendant met its initial burden, as to both remaining claims. Consequently, the burden to establish an exception to the statutory limitation periods shifted to Plaintiffs. (<i>Aryeh v. Canon Business Solutions, Inc.</i> (2013) 55 Cal.4th 1185, 1197.) To avoid the bar of the statute of limitations, the Fourth Amended Complaint alleges “Plaintiffs did not discover, and could not reasonably discover, the facts constituting BB&K’s willful acts and omissions until at least August 9, 2021.” (¶116 of 4AC [ROA No. 597].)
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		(¶14-¶24 and ¶33-¶41 of Boliver Declaration [ROA No. 799] and ¶3, ¶7-¶21, ¶24(F), ¶28-¶32 and ¶35 of Lawrence Declaration [ROA No. 797].) The above, however, does not demonstrate diligent investigation of their claims. While Plaintiffs declare “[s]ubpoenas were issued seeking records maintained by LaVine” and “[l]itigation concerning the production of those records followed” (¶31-¶32 of Boliver Declaration [ROA No. 799] and ¶26-¶27 of Lawrence Declaration [ROA No. 797]), Plaintiffs do not state <i>they</i> engaged in this discovery or participated in this litigation. Per Plaintiffs’ Counsel, the relevant discovery requests and subpoenas were served by Plaintiffs’ brother Daniel Jacobson. (¶8-¶9 of Smith Declaration [ROA No. 808].) Similarly, the motion to compel which ultimately resulted in production was pursued by Daniel Jacobson. (¶11 and ¶13 of Smith Declaration and Exhibit B thereto [ROA No. 808].) Likewise, while Plaintiff Lawrence Jacobson declares that he spoke to his brother Jeffrey Jacobson and “monitored developments relating to the dispute...” (¶24(A) and ¶24(B) of Lawrence Declaration [ROA No. 797]), this does not establish diligent investigation. Plaintiffs declare the probate production “materially expanded” their understanding of “the involvement of professionals” (¶39 of Boliver Declaration [ROA No. 799] and ¶33 of Lawrence Declaration [ROA No. 797]); however, they do not explain how the documents revealed involvement specifically by Defendant BBK. Plaintiffs’ Declarations confusingly address only their knowledge of conduct by <i>LaVine</i>, which is not the moving Defendant herein. (See ¶36, ¶38 and ¶39 of Lawrence Declaration [ROA No. 797] and ¶42, ¶44, and ¶45 of Boliver Declaration [ROA No. 799].) Consequently, Plaintiffs have not established the time and manner of discovery or the inability to earlier discover their claims, as required. (<i>Fox v. Ethicon Endo-Surgery, Inc.</i> (2005) 35 Cal.4th 797, 808.) Additionally, the Fourth Amended Complaint includes allegations of fraud: “Defendant BB&K willfully concealed the facts constituting the wrongful act or omission when those facts were known to BB&K....” (¶116 of 4AC [ROA No. 597].) As noted by the Court in <i>Vaca v. Wachovia Mortgage Corp.</i> (2011) 198 Cal.App.4th 737, “a defendant may be <i>equitably estopped</i> from asserting the statute of limitations when, as the result of intentional concealment, the plaintiff is unable to discover the defendant’s actual identity.” (<i>Id.</i> at p. 745.) “For a defendant to be equitably estopped from asserting a statute of limitations, the plaintiff must be ‘directly prevented...from filing [a] suit on time.’” (<i>Id.</i> at p. 746.) Plaintiffs offer no evidence that Defendant BBK took any action which directly prevented Plaintiffs from bringing suit on time. Based on all the above, summary judgment is GRANTED.
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